

Corrections as Healing: Confronting the reality of state-administered corrections through the lens of Aboriginal rights

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Why Aboriginal Corrections?

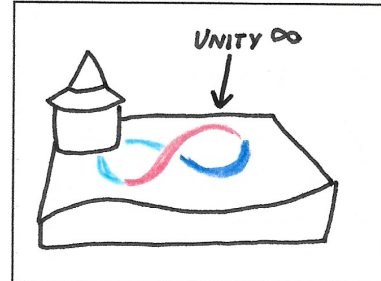
A prologue to this project, I wrote a paper this past Fall in a seminar on Penal Policy that addressed the barriers Indigenous women face in accessing section 81 and 84 agreements. Section 81 and 84 are provisions in the *Corrections and Conditional Release Act* that were included as a response to the severe over-representation of Aboriginal persons in federal penitentiaries. These sections sought to enhance Aboriginal community involvement in corrections with the ultimate goal of reducing this representation over time. Though the section does not specify the form of agreements, section 81 has been found to include the transfer of offenders to an Aboriginal community by way of placement in “healing lodges” as well as more general release into the care and custody of Aboriginal communities. Section 84 concerns the creation of focused reintegration plans for Aboriginal offenders and does so by placing a positive duty on the Service to facilitate a form of consultation with Aboriginal communities. Through the assembly of this paper I arrived at the conclusion that the Correctional Service of Canada was complicit in this underutilization through misdirection of funds, insufficient *Gladue* application and security overclassification of Aboriginal inmates.

This artwork began as a research paper seeking to confront these issues from a different perspective. I had hoped to explore the administration of correctional programming by Indigenous peoples through a claim of Aboriginal right. In assembling this argument I came to a series of barriers that I could not comfortably overcome. As an Indigenous person with Métis and Cree heritage, I felt that the carving away of the right that I would have to do to fit it into the section 35 framework* was offensive to the objective I had in mind in completing the project. Just as Canadian correctional centres imprison Indigenous bodies, so too would the modern Aboriginal rights framework imprison a potential right to administer corrections. I was thankful for the opportunity to assemble my thoughts and perspectives into a mixed media piece and was careful to ensure each component of the piece carried some meaning.

* Aboriginal rights framework as developed in cases such as *Sparrow*, *Van der Peet*, and *Gladstone*.

Métis Unity

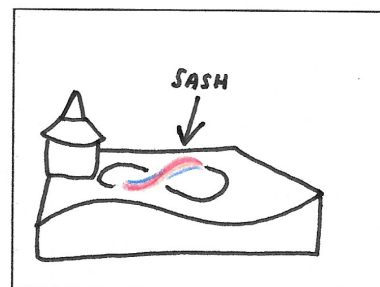
The first clear issue I had in assembling the right was the characterization of the claim. As seen in *Van der Peet*, the court must look to the defining and central attributes of the Aboriginal society in question in order to satisfy an established right. Through my research I could not find any Indigenous group that holds the administration of corrections at the core of its identity. Certainly for my Nation, the administration of corrections has been an important part of our societies in times past, but it is not the aspect of our society that is of “central significance”.



To address this, I used the symbol of the Métis Unity, which is prominently featured at the centre of the piece. Part of the Unity is composed of water, seaweed (herring spawn) and a salmon, as well as a Métis sash and my interpretation of traditional flower beading. This is to signify that all Indigenous rights are interconnected and interdependent. While hunting, fishing and trapping are all essential components of Indigenous nations, other critical ceremonies and programs are intertwined with these rights. The Unity symbolizes the need for more broad rights to be recognized under the section 35 guarantee, which should include a right to administer correctional programming.

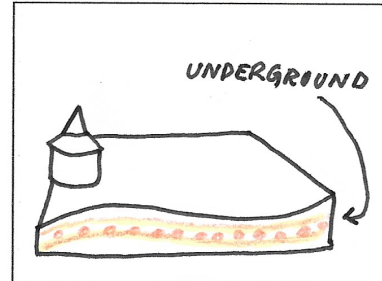
The Sash

The effort to secure Aboriginal rights and title is a slow and drawn-out process for all involved. This may be traced to fact that the onus is on the First Nation to prove that such a right exists. In this artwork, the Métis Sash signifies the diversity of Métis peoples but also all Indigenous Nations. Composed of many interconnected threads, colours, and patterns, the Sash illustrates how our fates as Indigenous peoples are intertwined. Indigenous peoples have modeled this over millennia through shared struggles and experiences of resistance. The placement of the Sash within the Unity symbol asserts that that it is an error to characterize our rights as distinct and independent.



Jewelled Underground

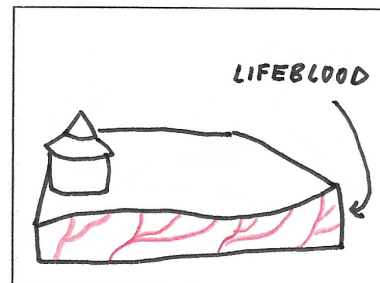
The gold/jewelled earth underlying the piece represents the underlying title that an Aboriginal title claim is subject to (as seen in *Tsilqot'in*). While the underlying title creates a fiduciary duty on the Crown with respect to the specific Aboriginal group, as seen in *Sparrow* this can include questions of whether there has been as little infringement as possible or that the infringement by the Crown is justified. The Crown also maintains the right to encroach if it is found



to be in the broader public interest. In assembling a right to administer corrections, I combed through the *Hansard* evidence to see what the legislative intent for sections 81 and 84 were. There is a strong focus of the rights and recognition of victims in the discussion of the proposed Bill. There is also discussion on how the Bill's provisions will affect public protection and safety. In assembling a right to administer corrections, it is likely that any infringement on such a right will be justified because of a valid legislative objective of safety and protection of the public. The underground in my piece signifies this underlying threat to the right. Even where Aboriginal groups have secured more control over the administration of corrections through section 81 agreements, the operability of these agreements are subject to the *CCRA* as well as CSC policy guidelines. One such guideline that limits the operation of section 81 and 84 is Guideline 710-2-1, which states that inmates will only be eligible for transfers under section 81 if they are classified as minimum security, or in rare cases medium security. The resulting effect is that almost 90% of Aboriginal prisoners are not eligible for these transfers.

Lifeblood

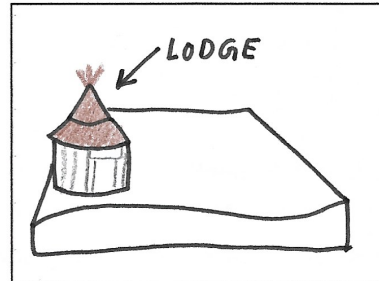
Many Indigenous groups have been unable to continue traditional practices of administering corrections to the extent practiced before the assertion of sovereignty. In my piece, the raised red structures overlying Crown title signify how though these practices may not be the foundation of Indigenous societies any longer, the healing processes behind those practices continue to give communities life. The blood lines signify how our rights are rooted in something much deeper



than the Crown's underlying interest, whether it is recognized by Canadian law or not. Our connection to the land and to our ancestors give our communities strength.

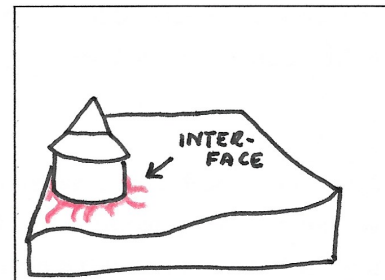
The Lodge

The *Corrections and Conditional Release Act* specifically speaks to the Aboriginal administration of corrections and limits them in the context of section 81 and 84. The Lodge (Okimaw Ohci) is structured by a selection of important sections of the *CCRA*. Though not a section 81 Lodge, it acts a symbol of the effective extinguishment of traditional correctional and rehabilitative programming administered by Indigenous groups. While the lodge may provide programming through an Indigenous lens, it is created by statute and is administered by the State. The roof of the Lodge symbolizes the *appearance* of tradition, where some traditional healing practices are embraced while the institution is structured by statute.



The Interface

The interface between the Healing Lodge and the landscape signifies the clash between Indigenous healing practices and CSC-administered correctional programs. Limited access to section 81 and 84 agreements by Indigenous peoples means that the ability to experience culturally relevant healing paths is encumbered by state practice. The interface between these opposing interests is the reality of blood.



Beaded Flowers

Among the beaded flowers, each of the four parts of the plants are shown: stems, leaves, buds and flowers. Within a Métis perspective, this is to signify the cycle of life and balance. In the context of corrections, a healing approach requires such balance in order to be effective. The beaded flowers signify the potential of an Aboriginal right to administer corrections. A system that explores and affirms the realities of victims, accused persons, the community and Elders can foster a correctional approach that centres on rehabilitation and healing.

